



CHAPTER xcvi.

An Act to confirm a Provisional Order under the Land Drainage Act 1861 in the matter of a proposed drainage district in the Parishes of Bourne and Thurlby in the County of Lincoln. A.D. 1910.
[3rd August 1910.]

WHEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Land Drainage Act 1861:

24 & 25 Vict.
c. 133.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Land Drainage Provisional Order Confirmation (No. 3) Act 1910. Short title.

A.D. 1910.

SCHEDULE.

LAND DRAINAGE ACT 1861.

PROVISIONAL ORDER.

*In the matter of a proposed Drainage District in the Parishes
of Bourne and Thurlby in the County of Lincoln.*

1. The Board of Agriculture and Fisheries in pursuance of the powers vested in them by the Land Drainage Act 1861 and the Board of Agriculture and Fisheries Acts 1889 and 1903 do by this Provisional Order constitute the lands shown on a plan sealed by the Board and therein coloured pink a separate drainage district under the Land Drainage Act 1861:

2. And they do further by this their Provisional Order make the following regulations with respect to the Drainage Board (that is to say):—

(A) The Drainage Board for the said district shall consist of thirteen members:

(B) The following persons shall be members of the first Drainage Board:—

The Most Honourable William Thomas Brownlow
Marquis of Exeter;

Charles Edward Andrew of Bourne in the county of
Lincoln;

Stephen Robert Andrews of Bourne aforesaid;

Thomas Whymant Atkinson of Greatford in the county
of Lincoln;

Thomas Moore Baxter of Bourne aforesaid;

William Castledine of Bourne aforesaid;

Richard Laud of South Fen Bourne aforesaid;

The Reverend Hugh McNeile Mansfield of Bourne
aforesaid;

George Henry Mutter of Osbornby in the county of
Lincoln;

Henry Norman of Syston in the county of Leicester;

Edward Rowlett of South Fen Bourne aforesaid;

Edward Stubleby of Bourne aforesaid; and

Jonathan Ward of Thurlby in the county of Lincoln:

(c) The first meeting of the Drainage Board shall be summoned A.D. 1910.

by a notice under the hands of any two or more members of the Drainage Board which shall be published in some newspaper circulating extensively in the said district and shall be posted at the principal entrance doors of the places of public worship in the said parishes of Bourne and Thurlby at least fourteen days before the day of meeting :

(d) The qualification of any subsequent member of the Drainage Board shall be that he shall be (1) the proprietor of not less than ten acres of land within the said district or (2) the heir apparent of a proprietor (such proprietor not being himself a member of the Board) of not less than ten acres of land within the said district or (3) the occupying tenant yearly or otherwise of not less than twenty acres of land within the said district or (4) the agent of a proprietor of not less than ten acres of land within the said district such agent acting under a written appointment :

(e) The members of the first Drainage Board shall vacate their offices on the first Thursday in September in the year following that in which this Provisional Order shall have been confirmed by Parliament :

(f) The electors for members of the Drainage Board shall be the persons who were during the year immediately preceding such election liable to be rated to any drainage rate of the said district leviable by the Drainage Board and have paid all such rates (if any) levied and due from them at the time of such election.

3. This Order shall not prejudice or affect any right of the proprietor or proprietors for the time being of the Bourne South Fen Pastures or of the land known as Thurlby Fen Pastures to drain and keep drained the said lands by means of the tunnel in part of the north-west bank of the River Glen included in the area of the said district and known as Sir Gilbert Heathcote's tunnel and lying under the said river and especially referred to in an Act passed in the forty-first year of the reign of His Majesty King George the Third Chapter 128 and intituled "An Act for dividing allotting and inclosing
" Deeping Langtoft Baston Spalding Pinchbeck and Cowbit Commons
" within the Parts of Kesteven and Holland in the County of Lincoln
" and also for draining Crowland Common or Goggushland and certain
" Lands and Grounds in the Parishes of Bourn and Thurlby adjoining
" or lying contiguous to the North Bank of the River Glen and certain

[Ch. xcvi.] *Land Drainage Provisional Order* [10 EDW. 7 &
Confirmation (No. 3) Act, 1910. 1 GEO. 5.]

A.D. 1910. “ inclosed Lands in Deeping Fen and in the Parishes of Spalding and
— “ Pinchbeck adjoining to the said Commons and lying between the
“ Rivers Glen and Welland and also for rendering more effectual
“ several Acts of Parliament heretofore passed for draining and
“ preserving the several Lands and Grounds and Commons herein-
“ before mentioned or certain Parts thereof.”

4. This Order shall not prejudice or affect the right of the proprietor or proprietors for the time being of the lands known as Bourne South Fen Pastures and Thurlby Fen Pastures to drain and keep drained the same lands in the same manner and by the same methods ways and means as the said lands are now or can or may be drained.

In witness whereof the Board of Agriculture and Fisheries have hereunto set their official seal this twenty-third day of April nineteen hundred and ten.

(L.S.)

T. H. ELLIOTT
Secretary.

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